

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEBRA NELSON,

Plaintiff,

vs.

CASE NO.: 3:25-cv-1447-MCR-ZCB

**AMENTUM GOVERNMENT
SERVICES PARENT HOLDINGS
LLC, CLARENCE XANDER,
JANICE HUGHES, HEATHER
GUNN, DAKOTA THOMAS,
ELIAS VELASQUEZ, and YUSEF
ABDUL-JAMI,**

Defendants.

**DEFENDANTS' NOTICE OF NON-OPPOSITION TO PLAINTIFF'S
MOTION FOR LEAVE TO FILE SIXTH AMENDED COMPLAINT [DOC.
46] AND *OPPOSED* MOTION FOR AN EXTENSION OF TIME TO
RESPOND TO PLAINTIFF'S SIXTH AMENDED COMPLAINT**

Defendants, AMENTUM GOVERNMENT SERVICES PARENT HOLDINGS LLC, CLARENCE XANDER, JANICE HUGHES, HEATHER GUNN, DAKOTA THOMAS, ELIAS VELASQUEZ, and YUSEF ABDUL-JAMI (collectively, "Defendants"), by and through undersigned counsel, and pursuant to the Court's January 21, 2026 Order [Doc. 48], Rule 6(b)(1)(a), Federal Rules of Civil Procedure, and Rule 6.1, Local Rules of the U.S. District Court, Northern District of

Florida, respectfully file this Notice of Non-Opposition to Plaintiff's Motion for Leave to File Sixth Amended Complaint and *Opposed* Motion for an Extension of Time to Respond to Plaintiff's Sixth Amended Complaint.

1. On December 23, 2025, Defendants filed a Motion to Dismiss Fourth Amended Complaint ("Motion to Dismiss"), seeking dismissal of all of the claims pled in the Fourth Amended Complaint [Doc. 33].

2. On December 31, 2025, Plaintiff filed a Motion for Leave to Amend Complaint ("1st Motion for Leave") [Doc. 37], along with a proposed Fifth Amended Complaint [Doc. 38].

3. On January 2, 2026, the Court tolled the deadline for Plaintiff to respond to Defendant's Motion to Dismiss and stated that Defendants have fourteen (14) days to respond to Plaintiff's 1st Motion for Leave [Doc. 42].

4. However, before Defendants responded to Plaintiff's 1st Motion for Leave [Doc. 42], Plaintiff informed the undersigned counsel that she intended to file a Motion for Leave to File Sixth Amended Complaint.

5. Accordingly, Defendants moved to toll the deadline to respond to Plaintiff's 1st Motion for Leave in light of the forthcoming motion and proposed Sixth Amended Complaint [Doc. 44]. The Court granted Defendants' motion on January 16, 2026 [Doc. 45].

6. On January 20, 2026, the Court received Plaintiff's Motion for Leave to File Sixth Amended Complaint ("2nd Motion for Leave") [Doc. 46], along with the proposed Sixth Amended Complaint [Doc. 47].

7. On January 21, 2026, the Court directed Defendants to respond to Plaintiff's 2nd Motion for Leave within fourteen (14) days of the Order [Doc. 48]. Thus, Defendants' deadline to respond to Plaintiff's 2nd Motion for Leave is February 4, 2026.

8. The Sixth Amended Complaint cures certain pleading deficiencies raised in Defendants' Motion to Dismiss. For example, Plaintiff dismissed Counts IX through XI of the Fourth Amended Complaint. However, Plaintiff's Sixth Amended Complaint continues to fail to state any viable claim for many of the same reasons that were raised in Defendants' Motion to Dismiss.

9. Additionally, Plaintiff's assertion that the changes in the Sixth Amended Complaint are minor is inaccurate. Rather, Plaintiff has added numerous new factual allegations, substantially revised other factual allegations, and changed the claims and Defendants against whom the claims are asserted as compared to the Fourth Amended Complaint.

10. Even though Defendants contend that the Sixth Amended Complaint fails to state a claim, given the liberal standard generally applicable to motions for

leave to amend the pleadings and the fact that the Sixth Amended Complaint further refines the claims, Defendants do not oppose Plaintiff's 2nd Motion for Leave.

11. That said, in an abundance of transparency to Plaintiff and the Court, Defendants intend to file a Motion to Dismiss the Sixth Amended Complaint should the Court grant Plaintiff's 2nd Motion for Leave.

12. The Sixth Amended Complaint contains eight counts against seven defendants. In light of the many counts, the number of defendants, and the new allegations in the Sixth Amended Complaint, Defendants respectfully request a one-week extension of time to file their response to Plaintiff's Sixth Amended Complaint.

13. Therefore, should the Court grant Plaintiff's 2nd Motion for Leave, Defendants request that they be permitted 21 days (rather than 14 days) from the date of the Court's Order to file their Motion to Dismiss the Sixth Amended Complaint.

14. This Motion is made in good faith and not for the purposes of delay or any improper purpose. No parties will be prejudiced by the relief sought herein, and the requested relief otherwise promotes the interests of judicial economy.

15. By filing this Notice of Non-Opposition, Defendants do not intend to waive (and they expressly reserve) any available defenses or affirmative defenses they have to Plaintiff's Sixth Amended Complaint.

MEMORANDUM OF LAW

Rule 6(b)(1)(A) of the Federal Rules of Civil Procedure provides that where an enlargement of time is requested before the expiration of the period originally prescribed, such enlargement may be granted by the Court for cause shown. The requested extension will allow the undersigned to review the substantially revised Sixth Amended Complaint with Defendants and to prepare an appropriate response. Accordingly, Defendants have shown good cause for the requested enlargement of time, which is timely requested before the expiration of the present deadline for Defendants to plead or otherwise respond to Plaintiff's Sixth Amended Complaint. Granting this Motion will not prejudice any party or impact any other deadlines in this case. Therefore, should the Court grant Plaintiff's 2nd Motion for Leave, Defendants respectfully request that the deadline for Defendants to respond to Plaintiff's Sixth Amended Complaint be extended to and including 21-days after the Court grants Plaintiff's 2nd Motion for Leave.

Compliance with N.D. Fla. L.R. 7.1(B) and (C)

Pursuant to N.D. Fla. L.R. 7.1(B) and (C), the undersigned has conferred with Plaintiff and Plaintiff opposes the relief requested herein.

Compliance with N.D. Fla. L.R. 7.1(F)

Pursuant to N.D. Fla. L.R. 7.1(F), counsel for Defendants confirm this Motion and the supporting Memorandum of Law total 1120 words.

WHEREFORE, Defendants respectfully request that, should the Court grant Plaintiff's Motion for Leave to File Sixth Amended Complaint, Defendants' deadline to respond to Plaintiff's Sixth Amended Complaint be extended to and including 21-days after the Court enters an Order granting Plaintiff's Motion for Leave to File Sixth Amended Complaint.

DATED this 3rd day of February, 2026.

Respectfully submitted,

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Attorneys for Defendant

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 3rd day of February 2026, a true and correct copy of the foregoing was electronically filed with the Court by using the CM/ECF system and served via e-mail to the following *pro se* Plaintiff:

Debra Nelson

[REDACTED]
[REDACTED]
[REDACTED]

Pro se Plaintiff

/s/ Lindsay D. Swiger
Lindsay D. Swiger